

# The time limit on copyright: an unlikely tragedy of the intellectual commons

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Published online: 25 April 2016  
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**Abstract** With their “tragedy of the commons” paradigm for intellectual property, Landes and Posner argue that the most important benefit of intellectual property rights is not that they generate incentives to create new works, but that they ensure the efficient exploitation of existing intellectual works. This alternative economic case for IP notably relies on the argument that allowing the copyright on certain massively popular works to expire could lead to their overexploitation, generating negative externalities similar to congestion externalities. This article will assess in detail the plausibility of this effect, by reviewing its most plausible interpretations: a boredom effect, a “blurring” or “tarnishment” effect, a snob effect, or a decrease in product diversity. I will argue that while Landes and Posner’s argument is ultimately inconclusive and unverified by the current state of empirical research, it also raises greater challenges than has usually been thought. Moreover, taking their argument seriously can also contribute to a better understanding of the purposes and limits of an intellectual property regime.

**Keywords** Intellectual property · Copyright extension · Richard Posner · Indefinitely renewable copyright · Tragedy of the commons · Congestion externalities · Overexploitation · Overgrazing · Blurring · Tarnishment

**JEL Classification** K11 · O34 · D62 · D63

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## 1 Introduction

A special issue on Richard Posner would not be complete without a mention of his legacy in the intellectual property<sup>1</sup> literature. Along with his colleague William Landes, Richard Posner is responsible for a great deal of the most influential contributions on the economics of intellectual property, with an impressive series of co-authored articles which proved often insightful as well as provocative. These pieces were compiled in a book called *The Economic Structure of Intellectual Property* (Landes and Posner 2003), which provides a good overview of the economic analysis of law approach to intellectual property law. In a solitary contribution on this topic, Posner sketches out the major traits of such approach:

«Whereas the “pure” economist (...) is likely to approach the question of optimal regulation of intellectual property from the standpoint of the economics of innovation, public goods and marginal-cost pricing, the economic analyst of law is more likely to begin with the parallels between intellectual and tangible property» (Posner 2005, 59)

Indeed, one of the fundamental assumptions in Landes and Posner’s work on intellectual property is that of the “continuity between rights in physical and material property”, and the fruitfulness of analyzing intellectual property through the lens of the economics of material property (Landes and Posner 2003, 11).

This parallel, however common in public discourse, is quite controversial in IP literature, with authors warning that this paradigm inspired from material property might lead to undue expansions in the scope of intellectual rights.<sup>2</sup> Landes and Posner recognize these risks, and are extremely cautious in their assessment of the parallel between intellectual and material property, noting that “intellectual property rights tend to be more costly, in all the ways we have indicated, than rights in physical property” (ibid. 21). They also express their doubts about the “rampant propertization of information and other intellectual goods”, and stress that an extensive propertization is unlikely to have similarly beneficent effects in the intellectual realm than in the material realm: “It is easy to imagine agriculture without common pastures but difficult to imagine a system under which, for example, every possible combination of words, symbols, colors, and other marks of identification were owned” (ibid. 13).

In any case, this idea of a continuity between intellectual and material property is central to Landes and Posner’s unconventional views on the justification of intellectual property. Taking inspiration from the “tragedy of the commons” argument for material property, they put forward an alternative economic paradigm of IP, arguing that the main benefit of intellectual property is in favoring the efficient exploitation of existing works, rather than generating incentive to create new works, as suggested by the incentive-access paradigm. This is where their most controversial argument comes in: based on this alternative justification for IP, they

<sup>1</sup> Here I will use the expression “intellectual property” to denote only the exclusive rights in information such as copyright, patents and trademarks, and not the subject-matter itself.

<sup>2</sup> Cf. for example Sterk (2005), or Netanel (2003).

challenge the widely held proposition that copyright should be limited in duration, and argue instead for a system of “indefinitely renewable copyright” (Landes and Posner 2003, 213–253).

In fact, their challenge goes even further than that. With this alternative account to the conventional incentive-access paradigm for IP, they challenge the idea that copyright law is justified only insofar as it provides sufficient incentives for creation. If Landes and Posner are right that intellectual property ensures the efficient exploitation of existing works, then it is property, and not free use, that effectively becomes the new baseline to assess what should be the legal regime of information.

Landes and Posner are not alone in supporting such a property paradigm for intellectual property, although their work constitutes perhaps one of the most articulate attempts to apply it in the context of copyright law. Other famous proponents of such paradigm include notably Demsetz (1969), Kitch (1977) Goldstein (1994), Liebowitz and Margolis (2005).

This property argument for IP has been met with stark resistance in the copyright law literature (Netanel 1996; Lemley 2004, 2005; Frischmann 2008). However, this apparent opposition between an incentive-access paradigm and property paradigm for IP should not be overstated, as property theorists generally do not reject the concern for incentives to create new works, but rather supplement it with other concerns regarding the efficient exploitation or maintenance of existing works (cf. Aldred 2010).

In any case, for the purpose of this paper I will not focus on this battle of “paradigms”, nor on its implications for the regulation of information. These issues have already been discussed thoroughly by others (cf. Aldred 2010; Benkler 1999).

Instead, I want to focus on the particular case made by Landes and Posner for an indefinitely renewable copyright, which I feel has sometimes been dismissed too quickly in the literature (for critics of Landes and Posner’s argument, see notably Lemley 2004; Karjala 2005; Boldrin and Levine 2009; Himma 2013). I believe that these arguments related to the role of intellectual property to avoid overexploitation of intellectual creations raises many interesting questions, and deserves to be taken more seriously than they have been until now.

In the end however, I will argue that these arguments ultimately fail to provide a plausible justification for copyright law, notably because Landes and Posner fail to produce a convincing case for the empirical claims that they make, and the current state of empirical literature does not seem to support them either. But before being able to verify them in light of empirical analysis, it is useful to clarify and carefully distinguish Landes and Posner’s hypotheses, see how (and if) they work together, and consider whether some of them might provide insightful avenues for further research. This is what this paper will try to achieve.

I will begin by outlining the theoretical paradigm advanced by Landes and Posner, the Tragedy of the Commons argument for IP (Sect. 2). After having considered certain potential misunderstandings (Sect. 3), I will proceed to the heart of the discussion by assessing various interpretations of the argument by Landes and Posner that overexploitation of intellectual work can have detrimental for aggregate

welfare<sup>3</sup> (Sect. 4). Finally, I will assess the overexploitation hypothesis itself in light of the available empirical studies on the issue (Sect. 5).

## 2 The tragedy of the commons as a justification for IP?

The idea of a continuity between material and intellectual property is at the center of Landes and Posner's discussion of the justification for intellectual property. After expressing skepticism about Lockean or Hegelian theories,<sup>4</sup> they consider the economic case for intellectual property, which plays a large role in utilitarian and other consequentialist justifications of intellectual property.

Although they have authored one of the seminal economic papers on the conventional "incentive-access" paradigm (Landes and Posner 1989), they put much effort in distancing themselves from it. They insist that analyzing IP through this sole lens can lead to "ignore entire bodies of intellectual property law" and "obscure the legal and economic continuity between physical and intellectual property" (Landes and Posner 2003, 11).

In line with this continuity axiom, they present the economic case for intellectual property by borrowing from the literature on the economic benefits of material property.

The traditional argument for property rights emphasize their contribution to *dynamic efficiency*: property rights incentivize their holders to properly invest in the creation or improvement of a resource. A farmer would have no incentive to invest in planting a crop if he has no remedy against others reaping where he has sown.<sup>5</sup>

This argument, according to Landes and Posner, is analogous to the traditional argument for copyright law. To recall, the conventional case for copyright law is that because of the public good characteristics of intellectual works (i.e. their non-rivalry and non-excludability), intellectual creators might not be able to recover their (high) fixed cost of creation, as the price is driven down by competitors who only face the (low) marginal cost of copying. Thus markets will fail to provide the optimal amount of new intellectual works, hence the need to give creators sufficient incentive to create, in the form of intellectual property rights on their work (Landes and Posner 1989). As with the analogue argument for material property, this argument for IP emphasizes its positive contribution to dynamic efficiency, as it generates incentives to create valuable resources.

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<sup>3</sup> Let us note that the various chapters of the *Economic Structure of Intellectual property* make no particular mention of Posner's controversial wealth maximization theory, but borrows from on a more conventional welfarist language, which I shall likewise adopt in this paper for the sake of the discussion.

<sup>4</sup> For other skeptical takes on these theories, see notably: Waldron (1993), Schroeder (2005), Attas (2008), Lambrecht (2015).

<sup>5</sup> Cf. Posner (1998, 37) citing W. Blackstone, *Commentaries on the Laws of England* (1766), p. 7: «who would be at the pains of tilling [the earth], if another might watch an opportunity to seize upon and enjoy the product of his industry, art, and labour? Had not therefore a separate property in lands, as well as moveables, been vested in some individuals, the world must have continued a forest, and men have been mere animals of prey».

But there is a second case for material property rights, which Landes and Posner claim also has its analogue in the intellectual realm.

This *static argument* claims that property rights are efficient because they allow for internalizing the externalities involved in the use of a resource. This argument is a variant of the textbook case of the so-called «tragedy of the commons» famously framed by Garrett Hardin (1968), although the argument could be traced back to Harold Demsetz (1967)<sup>6</sup> or even to Frank Knight (1924).

The argument goes as follows: imagine an uncultivated pasture accessible to all. Because no regulatory authority or no owner can prevent herdsmen from letting their animals graze on the pasture, each herdsman will ignore the externality he imposes on each other by adding an additional animal. Therefore, the likely outcome will be overgrazing, which would result in a reduction of the weight gain of each animal in the short run, and in a depletion of the pasture altogether in the long run (Landes and Posner 2003, 223). In these situations involving scarce resources, what is individually rational is collectively suboptimal, hence the “tragedy” arising from uncoordinated individual behavior.

At first sight however, this tragedy of the commons does not seem to apply to the case of intellectual creations, because of their non-rivalry. To illustrate the common view on the issue, Posner cites Denis Karjala, writing for the *amici curiae* in the *Eldred v. Ashcroft* case<sup>7</sup>:

«There can be no overgrazing of intellectual property, however, because intellectual property is not destroyed or even diminished by consumption. Once a work is created, its intellectual content is infinitely multipliable» (Karjala 1998)

While Landes and Posner obviously do not deny the non-rivalry of intellectual works, they consider the previous claim as an overstatement. They argue that intellectual works could actually face a sort of overgrazing which, while not causing a literal depletion of the resource, could nevertheless have negative welfare effects. Indeed, they suggest that copyrightable expressions could be vulnerable to congestion externalities<sup>8</sup>: “if because copyright had expired anyone were free to incorporate the Mickey Mouse character in a book, movie, song, etc. the value of the character might plummet”, as the public “might rapidly tire of Mickey Mouse; and his image might also be blurred or even tarnished” (Landes and Posner 2003, 223).<sup>9</sup>

<sup>6</sup> In his seminal article “Toward a Theory of Property Rights”, Demsetz introduce the idea that the primary function of property rights is to guide incentives to internalize of externalities, and develops a positive theory of the emergence of property rights, based on the anthropological account of the link between the development of property rights and the emergence of the fur trade among the Montagnais-Naskapi native people in the North of Québec.

<sup>7</sup> In this landmark case, the US Supreme court famously upheld the constitutionality of the 1998 Copyright Term Extension Act: US Supreme Court, *Eldred v. Ashcroft*, 537 U.S. 186.

<sup>8</sup> Besides from the congestion externalities, they also put forward a second argument, which I will not discuss here, arguing that IP rights can be useful generate proper incentives for the maintenance of existing works.

<sup>9</sup> Somewhat surprisingly, Landes and Posner also argue that public domain works could also suffer from the opposite phenomenon, namely under-exploitation. We will not consider this argument in this paper, as

Therefore, according to Landes and Posner, the best solution to prevent this “overgrazing” from occurring is to adopt an infinitely renewable copyright system, which would allow right holders of popular works to extend their term of protection, and appropriately internalize the negative externalities that could result from an inappropriate level of exploitation.

Moreover, an indefinitely renewable copyright system would also have other advantages: first, they claim that it would considerably shorten the duration of protection for less successful works, whose right holders are not willing to pay the renewal fees (Landes and Posner 2003, 221). According to Landes and Posner, this could in effect *expand* the public domain, a claim that they support with an analysis of registration data from earlier American legislation before the current fixed term was introduced. Let us note however that this effect appears to result from the imposition of formalities for copyright protection, which need not be coupled with indefinitely renewable copyrights. Moreover, considered as a whole the impact on the public domain of Landes and Posner’s proposed scheme is ambiguous: if we accelerate the entry of unsuccessful popular works while perpetually detracting from it the most popular ones, are we really enhancing the public domain?

Second, they argue that an infinitely renewable copyright system would also have the advantage of reducing certain rent-seeking behavior on behalf of right holders: “eliminating the prospect of losing the income produced by old but still valuable copyrights would largely eliminate the incentive to lobby for copyright extensions” (Landes and Posner 2003, 221). This last argument is perplexing, as it amounts to arguing in favor of caving into industry lobbying in order to avoid such lobbying.

In this paper, I will focus not on the practical details and functioning of such indefinitely renewable copyright system, but on one of its main justifications: the need to internalize negative externalities due to the potential overexploitation of intellectual works.

### 3 Some potential misunderstandings

Before getting to the heart of Landes and Posner’s reasoning, let us first clarify some potential misunderstandings. First, some commentators have criticized their argument on the grounds that it does not qualify as an occurrence of tragedy of the commons:

reduction of a resource’s economic value is an analytically distinct matter from the depletion of a resource. While it is clearly true that depletion of any resource such as a river necessarily entails its reduction in economic value, the converse is false. The value of some item might fall for any variety of reasons

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Footnote 9 continued

it has already been more than adequately discussed in previous works. See e.g. Heald (2008), or Lemley (2004), p. 136: “Is there some greater need to subsidize the making of more copies Ulysses than the making of more paper clips? It is hard to see why; in both cases, once an intellectual property right expires, many companies can compete to make the good, and they will do so only so long as they can manufacture and distribute it for less money than people will pay to buy it. This doubtless means that some inefficient manufacturers will stop selling Ulysses (or paper clips), but that should not worry us. Indeed, if we believe in the market economy, it should delight us”.

that have nothing to do with its being depleted. (...) Hardin's argument simply has no application to the situation described by Posner and Landes (Himma 2013)

This criticism does not seem entirely fair. First, because while they clearly allude to the tragedy of the commons, Landes and Posner never explicitly cite Garrett Hardin, so they might not be interested in conforming to the details of his particular argument. And second, because a case can be made that a reduction of the value of a resource can sometimes have equally bad consequences as its depletion (compare the case of a polluted river to a river that dried up). Overgrazing can lead to other negative consequences than depletion, such as congestion externalities, where the aggregate use of a good degrades its quality (as in the case of road congestion).

To transpose Landes and Posner's argument into Hardin's metaphor, imagine a pasture that has a high renewability rate because of its particular type of fast-growing grass, and so practically undepletable, but where a certain level of grazing negatively affect the quality of the grass, so that the animals' meat acquires such a terrible taste that nobody would eat it. Wouldn't this qualify also as a case of tragedy of the commons, even if the resource is not depleted? In a sense, this undepletable pasture is still rival in consumption, because its use can decrease the utility of others. Similarly, Landes and Posner can say that even if an intellectual work itself is undepletable, its consumption or exploitation are rival as it can negatively affect the level of exploitation of the work. However, a significant difference between the two cases is in their reversibility: while the actual depletion of a (non-renewable) physical resource will be irreversible, diminution in value can often be reversed. A question for Landes and Posner's argument is whether the negative effects of this "intellectual overgrazing" could be sufficiently long-lasting to approximate the effects of an actual depletion (more on this below, at 3.1)

A second potential misunderstanding is on the issue of the nature of the externalities discussed by Landes and Posner. Do they really center on a case of technological externality (as they claim), or rather on a mere pecuniary externality? To recall, the consensus among economists is that while technological externalities (i.e. affecting third parties through their utility function) do matter for economic efficiency, pecuniary externalities (affecting third parties through the price system) do not (Laffont 2008).

According to Boldrin and Levine, this overgrazing argument for IP confuses pecuniary externalities with technological externalities. While acknowledging that Landes and Posner explicitly refer to this distinction, Boldrin and Levine (2009, 349) note that "they do not appear to understand it".

While I agree with Boldrin and Levine that the (perplexing) quote mentioned by Landes and Posner about Disney practicing "good husbandry" of its characters in order to avoid "debasement of the currency" does not seem to imply technological externalities, I am less convinced by their overall objection. According to them, the "tiredness of the audience" effect discussed by Landes and Posner is nothing more than the ordinary consequence of decreasing marginal utility: "If I eat a large meal, I am less hungry—the value to me of a meal is diminished, and restaurants will find I am not willing to pay them much money". And indeed this interpretation does not

appear to involve any externality: “For there to be an externality, it would have to be the case that my consumption of Mickey Mouse made you more tired of it—an improbability, to say the least” (Boldrin and Levine 2009, 348–349). But while tiredness of the audience is indeed an unlikely cause of consumption externalities, there are other possible explanations that Boldrin and Levine never consider, such as the possibility of a “snob effect” (which I will discuss below), or interpreting this tiredness of the audience as the result of externalities not in consumption, but in *production*.

In any case, considering the strong emphasis by Landes and Posner that their argument does indeed center on a technological externality, it seems uncharitable to assume the opposite interpretation. Other critiques, such as Lemley (2004) or Karjala (2005), recognize that Landes and Posner’s argument involve a demand-reducing effect, thus a shift of the demand curve typical from a technological externality, and not a mere movement along the demand curve resulting from a pecuniary externality. But they also make widely differing interpretations of the cause for Landes and Posner’s (alleged) demand-reducing effect: Lemley interprets it as saying that overexploitation of works in the public domain might frustrate a consumer preference for uniformity in their cultural icons, while Karjala reads it as affecting the “inherent value of the work”. These various interpretations call for different responses, that I will consider below.

#### 4 The welfare effects of overexploitation: various interpretations

It probably bears witness to the ambiguity of Landes and Posner’s argument that almost none of their critics appear to agree on its interpretation. But that does not mean their argument is devoid of interest, and we shall try to uncover its strongest interpretations before discussing them.

According to Karjala, Landes and Posner’s argument “implicitly equates the original demand curve D0 as representing some inherent value in the work” (Karjala 2005, 1071). However, Karjala notes, a decrease in the demand for Mickey Mouse does not necessarily imply a net loss for society: the most plausible consequence of this shift in demand is that consumers will substitute Mickey Mouse for something else. Therefore, either Landes and Posner hold “that the entertainment dollars previously spent on the now-unpopular iconic character will simply disappear from the economy”, or they “postulate an independent measure of value”. As Landes and Posner do not argue the former, Karjala concludes that they must “implicitly” support the latter (however, as they do not argue for either of these claims, it is unclear how Karjala can be confident that they “implicitly” support one and not the other).

Karjala’s point is apparently that bemoaning a shift of demand is the same as arguing against a shift in people’s preferences: a value judgment which must rely on some external measure of value, which would constitute a suspicious form of “preference paternalism”:



“The traditional versions [of Mickey and Bogie] may indeed be Landes and Posner’s preference, but if the demand curve has shifted downward it says no more than that they value Mickey and Bogie more highly than society as a whole does.” (Karjala 2005, 1071, note 3)

Are Landes and Posner really guilty of preference paternalism? Or are there other possible explanations for the underlying mechanism at work in their argument? I will try to envision alternative interpretations of Landes and Posner’s argument, relying on different mechanisms: a boredom effect, a “blurring” or “tarnishment” effect, a snob effect, and a decrease in the diversity of the production of intellectual works.

#### 4.1 Boredom effect

The first argument mentioned by Landes and Posner is that “If because copyright had expired anyone were free to incorporate the Mickey Mouse character in a book, movie, song, etc., the value of the character might plummet”, as “the public might rapidly tire of Mickey Mouse” (Landes and Posner 2003, 225). This would then lead to a shift in the demand for such works, which would presumably constitute a loss for society. This can be interpreted as a production externality, as the producers of a good impose a cost on third parties (as in the case of pollution).

An easy response to this could consist in saying that nobody is forced to consume intellectual works and that if the audience gets tired of a particular work, it should simply stop consuming it.

This appears to be true enough with works such as books, whose consumption requires the active involvement of the audience. But the same cannot be said of visual or musical works. In this era of omnipresent images and sounds, these works can be literally flung in the face of the public, through ambient music in shopping malls, advertisement in movie theaters, on public billboards, or TV or radio channels (although these are gradually taken over by non-linear on-demand services).<sup>10</sup>

So we might grant Landes and Posner the point that there can be such a thing as involuntary consumption (or “exposure”) of intellectual works. But the question remains as to what would be the detrimental welfare effect of an overexposure to certain intellectual works.

In saying that an overexposure to intellectual works can result in tiredness on the side of the public, Landes and Posner appear to rely on the intuitive idea that a certain level of exposure necessarily leads to boredom. And indeed such an “overexposure effect” has been largely confirmed by social psychology literature, which found that in average the relationship between frequency of exposure and liking takes the form of an inverted-U curve<sup>11</sup>: continued exposure is linked to an increase in positive affect until a point where boredom (or satiation) sets in and positive affect begins to decrease with exposure (Zajonc et al. 1974; Bornstein

<sup>10</sup> In the same sense, cf. also Buccafusco and Heald (2013, 32).

<sup>11</sup> Although individual patterns often largely differ from this average pattern (Hunter 2011, 49), but these variations are not directly relevant from the perspective of aggregate welfare.

1989; Schellenberg et al. 2008). Therefore, to avoid aversion from overexposure, it can indeed be useful to apply “good husbandry” in the exploitation of intellectual works. And one could assume that it is in the interest of IP right holders to do so, in order to avoid generating aversion for the works they manage (although there is at least some anecdotal evidence that right holders often fail to apply such good husbandry, as we will see below, cf. 3.2 *in fine*).

But while this might be a rational decision for IP owners, it is unclear why this goal should be pursued by society as a whole, through an IP reform similar the one Landes and Posner advocate. Is such aversion from overexposure really detrimental to aggregate welfare?

Answering the latter question requires further inquiry into the consequences of overexposure on consumers’ preferences: is aversion from overexposure likely to be permanent or merely temporary?

According to one of the seminal studies by Zajonc, it appears that the negative effects of boredom are only obtained temporarily (Zajonc et al. 1974, pp. 669–670). If that is the case, and if consumers’ liking of a given work can recover with time, then it is likely that producers will adjust their output on signals of consumer’s satiation, and resume it after recovery.<sup>12</sup> This would be unlikely to have detrimental consequences on aggregate welfare.

But let us imagine that the aversion developed from overexposure was indeed permanent, so that the public would become permanently bored of those intellectual works. Would that be a problem for aggregate welfare? Probably not, if we consider substitution effects: if good substitutes are available, the reduced demand for those works would simply be compensated by an increase in the demand for other works.<sup>13</sup>

Even so, Landes and Posner could well respond that since those overexposed works would be permanently disliked by the public, their entry in the public domain would have proved of little use to anyone. At least for the current generation, it would be as if they were completely destroyed, as in the tragedy of the commons scenario. Therefore, allowing for a renewal of their protection doesn’t harm anyone, since the alternative option is similar from an actual destruction of these works. And even if both options are equivalent for aggregate welfare, the other advantages of an indefinitely renewable copyright system<sup>14</sup> could be sufficient to tip the balance towards its economic efficiency.

However, this rebuttal relies on a strong analogy between the aversion from overexposure and a literal destruction of the good, an analogy that appears dubious. Indeed, the important individual differences in the relationship between exposure and liking make it implausible that market exploitation of works newly entered in the public domain could result in their unanimous and permanent aversion by the public, if only because generations do pass, and works can be rediscovered. It is probable that part of the (intergenerational) public would still enjoy those works, so

<sup>12</sup> Admittedly, such adjustment will be less immediate than the “good husbandry” of the IP owner, but this only underlines the difference in output planning under competition or under monopoly.

<sup>13</sup> This point is emphasized by Karjala (2005, 1072).

<sup>14</sup> See above, Sect. 3.

that the comparison of the welfare effects of granting copyright renewal on these works versus letting them expire is not as clear-cut as the comparison between granting a property right in a resource versus letting producers destroy it by exhaustion.

## 4.2 Blurring or tarnishment effect

The second argument made by Landes and Posner echoes the concern in trademark law about uses that cause dilution or tarnishment of a famous mark. Applied to copyright, the argument is that certain popular works, if allowed to enter in the public domain, could be subject to uses that could “tarnish” or “blur” them in the eye of the public:

[Mickey Mouse’s] image might also be blurred or even tarnished, as some authors portrayed him as a Casanova, others as catmeat, others as an animal-rights advocate, still others as the henpecked husband of Minnie (Landes and Posner 2003, 225)

Landes and Posner are quick to note that this issue is distinct from a concern over the right of integrity and moral rights in general (a doctrine towards which they express skepticism), but is driven by “a purely economic concern with minimizing economically harmful externalities” (Landes and Posner 2003, 227). Therefore, Landes and Posner must show that the phenomenon they describe would indeed constitute a net loss for society.

First, let us note that such “blurring” or “tarnishment” effects would more likely serve as a justification for an extension of the right to create derivative works, rather than of the right of reproduction (as Lemley (2004, 146) rightly points out). Indeed, it is hard to imagine that the mere existence of more copies of a work could contribute to blurring its image or meaning in the eye of the public. As for the hypothesis of a tarnishment of a work due to an excessive number of copies, although it is not unconceivable, it would probably be limited to particular cases such as limited-edition releases of a work or niche and confidential works whose consumption can be affected by a “snob effect”, which I will discuss later Sect. 4.4. For now, I will focus on a possible tarnishment or blurring due to the creation of derivative works.

Regarding firstly this “tarnishment” effect, the idea appears to be that the work could be “tarnished” in the sense that it be “degraded by the context to which it is presented to the public”. By that Landes and Posner apparently mean that the work be demeaned in the eyes of the audience (as suggested by their reference to the case “Carson v. Here’s Johnny” in the context of publicity rights, involving an allegedly “offensive” use of a celebrity’s identity to advertising a portable toilet).<sup>15</sup> In the same sense, a derivative work presenting Mickey Mouse as a drug addict<sup>16</sup> would somehow ruin the original Mickey Mouse for those who disapprove of such

<sup>15</sup> Cf. references in Landes and Posner (2003, 223 p. 226 and p. 159, note 24).

<sup>16</sup> Such as the famous Air Pirates comic strips, at the center of the US case “Walt Disney Productions v. Air Pirates”, 581 F.2d 751 (9th Cir. 1978).

conduct. So the derogatory use of a work in a derivative work could affect the meaning or appreciation of the original work. Interpreted as offensive use, the reach of this “tarnishment effect” is likely to be fairly limited, as there will always be sharp disagreement among the population as to what is considered offensive. And even in cases where there is a broad agreement on what constitutes an offensive use (e.g. uses in pornography), this broad agreement will ensure that such derogatory use will not be widely distributed or broadcasted by the mainstream media, and they would be thus unlikely to have any effect outside of their target audience.<sup>17</sup>

Secondly, regarding the “blurring” effect, Mark Lemley provides a convincing explanation as to how it could develop. Let us assume that “consumers desire uniformity in their cultural icons”. Because certain works have an iconic status, the public may have developed certain expectations regarding their characteristics. Allowing too many depictions of these works in a way that is not congruent with these expectations could undermine their iconic status, which could lessen the public liking of the original works itself (Lemley 2004, 146). While this effect could in theory affect anybody, Landes and Posner do not provide much reason for thinking so. The examples they give are scarce and apparently purely subjective: they mention “the Mona Lisa, the opening of Beethoven’s Fifth Symphony, and several of Van Gogh’s most popular paintings” as cases of “damaged” works that “come immediately to mind”,<sup>18</sup> while they note that the works of Shakespeare and Santa Claus have apparently been unaffected (Landes and Posner 2003, 226–227).

There might be a particular category of members of the public that would be more prone to suffer from this blurring effect, a category which Rebecca Tushnet has called “originalist readers”:

Just as someone who’s seen L’HOOQ can no longer look at the Mona Lisa with untainted eyes, someone who’s read about Harry Potter and the Mary Sue Bloodbath can’t enjoy the original in the same way. Crucially, this is not just a harm to the copyright owner, but a harm to the class of readers who really did like Harry Potter the way Rowling wrote him (Tushnet 2005)

While the existence of such originalist readers is not at all implausible, the burden of proof falls on Landes and Posner. They should at least show that it is sufficiently widespread among members of the public to weigh significantly in the cost-analysis balance. If these “originalist readers” only constitute a minority of members of the public, then their preferences for keeping intellectual work undebased by derivative works should normally not be of sufficient magnitude to outweigh the benefits enjoyed by the consumers of these derivative works, as well as the reduced cost of production for authors of derivative works.

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<sup>17</sup> This argument has been made to criticize the ruling (against) Air Pirates: “Air Pirate Funnies is an adult magazine with a clearly different purpose and audience than Disney’s. Someone interested in reading a Disney comic book would not turn to Air Pirate Funnies instead, and vice versa. Both publications perform different functions and have different markets. Therefore, the fair use defense should be permitted” (Totah 1987). Cf. also Hughes (1998, 985).

<sup>18</sup> Although it is unclear whether these illustrations are intended to exemplify the tarnishment effect or the boredom effect.

In a similar vein, Justin Hugues also provides anecdotal evidence of attitudes suggesting that members of the audience have an “interest for stable cultural objects”, which can enter into conflict with creative decisions by the right holders:

How many devotees of *Gone with the Wind* were opposed to the 1990s sequel *Scarlett*? How many fans of the book *Dune* were opposed to the movie version? How many comic book readers of old have been saddened as the look and feel of Batman or Spiderman have changed over the years? (Hughes 1998, 988)

Tushnet also remarks occurrence of this phenomenon in the domain of pop culture, where “Fans [...] see themselves as guardians of the texts they love, purer than the owners in some ways because they seek no profit” (Tushnet 1997).

What is particularly interesting about these observations is that, while they give some credence to the idea of an “interest for stable cultural objects”, they also point to numerous cases where this interest is actually frustrated by the right holders themselves. A prime example of that is how *Star Wars*’ creator Georges Lucas antagonized his fans by constantly tweaking and revising his (first) trilogy of movies in subsequent releases, and by hindering access to his original movies, and even preservation attempts (Eveleth 2014).

Therefore, either many right holders of pop culture works often fail to internalize the externalities due to the blurring or the tarnishment of their franchise for a part of the audience, or they do take them into account, but decide that such effects are not significant enough to offset the profit generated by a follow-up or adaptation. Both branches of the alternative would be problematic for Landes and Posner’s argument: either these observations undermine the idea that intellectual property rights are efficient means for the internalization of these “tarnishment” or “blurring” externalities by right holders, or it suggests that these effects are in fact not significant enough to offset the social benefits of additional derivative works.

This only underlines the need for empirical work to investigate the existence and consequences of Landes and Posner’s alleged blurring or tarnishment effect in the context of works covered by copyright.

### 4.3 Decrease in product diversity

Beyond the two arguments mentioned by Landes and Posner, we can imagine another potential negative externality that could result from an overexploitation of certain intellectual works, namely a decrease in the overall diversity of the production of intellectual works. This would be problematic if we make the (plausible) assumption that consumers have a preference for product diversity (and particularly with regards to intellectual works).

The idea is that the entry of popular intellectual works in the public domain could lead to such a massive redirection of intellectual producers towards producing copies or derivative works of the said popular work that it would lead to a considerable uniformization of the production of intellectual works, which would frustrate consumers’ preference for product diversity.

But it is hard to see why intellectual producers would be more prone to a failure to internalize such preference for diversity than producers of material goods. This is even more so considering that intellectual producers enjoy non-monetary rewards for making original creations, as Landes and Posner point out: «the more emphasis a culture places on originality, the greater the rewards to originality even if copying is cheap, quick, and accurate; the rewards don't necessarily have to come in the form of legal remedies against copiers» (Landes and Posner 2003, 53). Another way of putting it is to say that, while some producers might be tempted to reap a quick profit from exploiting popular works entering the public domain, quality producers will normally avoid overgrazed works since unoriginal creative decisions can have a reputational cost.<sup>19</sup>

Furthermore, if we are talking about the sheer *availability* of works, then it seems unlikely that we will witness a decrease in the diversity of available copyright works in a digital age of ever-reduced production and distribution costs and where the production of information has been characterized as following a “long tail” distribution (Anderson 2008).

#### 4.4 Snob effect

Finally, another option to make sense of Landes and Posner's argument is to take seriously their analogy with “congestion externalities”. Contrarily to the various effects that we just considered, a congestion externality is an externality in consumption, not in production. Indeed, road congestion happens when too many drivers “consume” road space, imposing an extra cost on other drivers. This is a case of negative network effect (where the number of users is negatively related to the utility they enjoy), as opposed to the more conventional notion of positive network effects.<sup>20</sup>

Of course, Landes and Posner's reference to congestion externalities cannot be interpreted too literally: because intellectual works are non-rival, their use by one consumer does not interfere with its use by others. So the argument must rely on some other negative network effect. One such effect could be a “snob effect”, which occur “when consumers derive more utility as the number of other users of the product decreases” (Liebowitz and Margolis 2005, 450). This effect should not be confined to the kind of elitist preferences suggested by the term “snob”, but can result from a fairly common preference for expressing one's individuality (ibid.). So the more Mickey mouse themed works (or merchandising) are consumed, the more its appreciation by the audience (or part of the audience) would fall.

However, the main problem with such characterization of Landes and Posner argument is that it is unlikely to be a problem for the kind of works that could likely be over-produced. Indeed, the kind of massively popular intellectual works or character that Landes and Posner have in mind, such as Mickey Mouse, are unlikely candidates as means for consumers to express their individuality, precisely because they are so popular; we can assume that someone wanting to express its individuality in its consumption of intellectual works, will normally choose to consume more

<sup>19</sup> This is inspired by an argument made by Buccafusco and Heald (2013, 45).

<sup>20</sup> Liebowitz and Margolis (2005, 450).

confidential works than Mickey Mouse. In other words, either a work is rather popular and it is then implausible that its consumption be affected by a snob effect, or it is rather confidential and it is therefore unlikely to face a problem of over-exploitation when it enters the public domain. Of course, implausible cases remain nonetheless possible, so we should not exclude that it could happen. However, in the absence of empirical evidence to the contrary, such worries should not carry much weight in policy debates on the duration of intellectual property rights.

## 5 Confronting the overgrazing hypothesis with existing empirical analysis

Throughout this discussion of Landes and Posner hypothesis of the technological externalities generated by overgrazing of intellectual works, I have stressed the need for verifying such hypotheses in light of empirical analysis.

At the end of their chapter on the optimal duration of copyrights and trademarks, Landes and Posner do spend a fair amount of time discussing empirics, but their discussion surprisingly does not touch on the central hypotheses behind the claim of an “overgrazing” phenomenon affecting works entering the public domain. They are only concerned with data about US copyright registrations and renewal before the abolition of formalities by the 1976 Copyright Act (cf. *supra*, Sect. 2, *in fine*), and only to support the point that an indefinitely renewable copyright system would likely not turn into perpetual copyright, which is by no means not the most controversial claim in their piece.

And admittedly, good empirical evidence is hard to come by in this field, as IP regimes have been around for so long that we don’t have reliable data on the situation predating the introduction of such regime. And international comparisons with countries with low-IP regime (formally recognized by law, but rarely enforced) are also not without challenges, considering the amount of economic and cultural differences between high and low-IP jurisdictions. However, there are many reasons to be unsatisfied by the state of empirical literature on the efficiency of the IP regime (see Thorpe 2004), and one cannot help but feel that our debates on this issue should rely on stronger empirical support than they currently do. This is particularly the case when one is advancing “unorthodox” hypotheses in favor of a radical agenda such as the idea of an indefinitely renewable copyright.

Fortunately, concerning the subject of inquiry of this article, a recent series of studies by Heald and others have ambitioned to fill this void. Echoing the pleas by the Hargreaves Review for evidence-based policy for IP (Hargreaves 2011), and answering the invitation for further research by Liebowitz and Margolis (2005, 449), they have undertaken to verify the overgrazing hypothesis put forward by Landes and Posner (Buccafusco and Heald 2013, 17–18).<sup>21</sup> As these studies by Heald and Buccafusco focus on the availability of works, they are of course not concerned with assessing the welfare effects of a potential overexploitation of

<sup>21</sup> Let us note that they also discuss the converse underuse hypothesis made by Landes and Posner, but as we already stated *supra*, note 9, this paper is only interested in the “overgrazing” argument.



works, which might prove a difficult task. Rather, their aim is simply (but no less crucially) to verify whether there is indeed a significant increase in exploitation of works after they have entered the public domain.

A first study, focusing on fiction bestsellers (Heald 2008) showed a significant but moderately higher availability of public domain works in comparison with works still under copyright. However, it is doubtful that an increase in availability could lead to detrimental welfare effects, especially for such works that require an active involvement of the audience (and thus to which the audience cannot be passively exposed). Moreover, there is no evidence of a decrease in the number of new books published due to the production of public domain works; to the contrary, industry statistics show a yearly 4 % increase in the number of new titles issued by publishers (Federation of European Publishers 2015).

But a more critical factor to assess the overgrazing hypothesis is the proportion of derivative uses. This point is addressed by a study on audiobooks (Buccafusco and Heald 2013), which found an important increase of audiobook recordings made from enduringly popular public domain works. However, a comparison of the pricing data for these work showed no evidence of destruction of the value of public domain works due to overuse (ibid. 31). Another study, this time on the use of public domain musical works in movies (Heald 2009), controlling for period effects as well as for the popularity of songs, found no significant difference in the rate of exploitation of public domain songs than that of their copyrighted counterparts: “Copyright owners seem to be willing to license their compositions at rates equal to or exceeding those of the most intensely used public-domain compositions” (ibid. 15).

Finally, in a yet unpublished study, Bu et al. (2016) are concerned with assessing the tarnishment hypothesis in particular. In order to test the assumption, frequent in IP case law, that sexual uses of works are presumptively tarnishing, they exposed subjects to posters of pornographic versions of popular movies. They found that, contrary to what the tarnishment hypothesis suggests, exposure to pornographic associations generally increased the perceived value of works, rather than decreasing it (except among the most socially conservative subjects). They note that these findings are consistent with the literature on consumer responses to sex in advertising, which finds that sexual associations were linked with increased purchase intention. All this tends to disprove two important empirical hypotheses for Landes and Posner’s overgrazing argument: that entry in the public domain will lead to an increased exploitation, and that a particular form of “tarnishment” (sexual associations) will lead to a decrease in perceived value of the work. This does not mean that fears of overexploitation or tarnishing associations cannot constitute legitimate concerns. But there is no specific evidence that works that have entered in the public domain are more vulnerable to such problems than works still under copyright.

## 6 Conclusion

To summarize, while Landes and Posner’s worries about the negative effects of an overexploitation of intellectual works are certainly worth considering, their “tragedy of the commons” argument for IP remains largely inconclusive in the



current state of empirical research. Indeed, many crucial parts of their argument are left unclear, such as whether a potential “overexploitation” of intellectual works would have a significant negative welfare effect, or whether such overexploitation is more likely to occur with works in the public domain than with protected works.

This is a serious problem not only for the proposal for adopting an indefinitely renewable copyright system, but especially for Landes and Posner’s overall theory of IP, since their support for a regime of intellectual property (and copyright law in particular) appears to rely almost entirely on their alternative “tragedy of the commons” argument.

Indeed, throughout their writings on IP, Landes and Posner emphasize how unsatisfactory the conventional economic case for IP is. They note that “the high social costs of intellectual property rights create uncertainty as to whether on balance such rights are, from an overall social standpoint, cost-justified at all”, and that the incentive-access trade-off is “[a] further reason for skepticism about the social value of expansive intellectual property rights” (Landes and Posner 2003, 21–22). They are highly critical of this incentive-access paradigm, stating that a belief in this economic argument for IP “cannot be defended confidently on the basis of current knowledge.” (ibid. 9–10), or that “economic analysis has come up short of providing either theoretical or empirical grounds for assessing the overall effect of intellectual property law on economic welfare” (ibid. 422).

Therefore, they are keen to stress that the economic arguments that they make for intellectual property are not “primarily based” on the incentive-access rationale, but “have rather to do with such things as optimal management of existing stocks of intellectual property, congestion externalities, search costs, rent seeking, and transaction costs” (ibid. 9–10). So the tragedy of the commons argument for IP functions as an alternative economic case for IP, intended to make up for the inconclusiveness of the conventional incentive-access argument.

But if this alternative case is as inconclusive (and maybe even more so) than the conventional economic case for IP, one cannot help but wonder what are the remaining foundations for Landes and Posner’s continued support of an IP regime.

In this regard, it is striking to notice the discrepancy between Landes and Posner’s bold conclusions in favor of an indefinitely renewable copyright system, and the always cautious and very modest elaboration of the argument. They admit that “[w]e must not press the congestion argument (...) too far” (ibid. 226), but merely counter that “there is potentially a legitimate concern here, one that economic analysis should not ignore completely” (ibid. 227). Sometimes they are straddling the fence, with statements such as: “neither economic theory nor empirical evidence enables a ringing endorsement of any complete body of intellectual property law other than trademark law, which protects “property” in only an attenuated sense. We do, however, find pretty solid economic support (...) for a degree of copyright and patent protection as well, but possibly a lesser degree than we have.” (ibid. 9).

Are these all cases of “exception-barring”, as some suspect (Campbell and Picciotto 2006)? Or does Landes and Posner’s apparently uncomfortable position result from a reluctance in taking their reasoning to its ultimate conclusions, due to the weight of the status quo of the intellectual property regime that we have?

To get back to Landes and Posner's overgrazing argument, we can all agree that the possibility congestion externalities or overexploitation should not be ignored completely, and even open particularly relevant questions in the context of an increasingly globalized blockbuster culture, itself feeding into popular phenomena such as internet memes, that all crucially rely on universally recognizable cultural icons. However, until a strong case, verified by empirical analysis, has been made for such arguments, they are not fit to act as a guide to policy decisions. And if the conventional incentive-access justification is as inconclusive as Landes and Posner (and others<sup>22</sup>) have argued, then it hardly seems appropriate to support a removal of the time limit on copyright in favor of an indefinitely renewable regime with ambiguous consequences. If we are even minimally committed to individual freedom, in case of doubt about the justification of a particular legal rule, the default position should generally be the absence of legal restrictions on individual conduct (such as restrictions on the ability to freely use, copy and build on available intellectual works). Those who resist to this idea would have to support the rather counter-intuitive view that between two equally effective regulations one of which is much more freedom-restricting than the other, they would be indifferent, or could even prefer the former over the latter.

Besides, even if we confine our analysis to economic efficiency, the uncontested social costs of intellectual property rights<sup>23</sup> should surely outweigh the dubious benefits of extending their protection. From this perspective, the minimal and obvious conclusion from the inconclusiveness of the economic cases for IP would be to advocate stronger limitations and a shorter duration, in order to curtail the social cost of an intellectual property regime.

**Acknowledgments** The author wishes to thank Alain Marciano for his precious feedback on an earlier draft of this article, Tim Meijers and Thomas Ferretti for their helpful comments and careful reading, and the anonymous peer reviewers for their constructive criticisms and excellent suggestions.

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<sup>22</sup> Cf. notably Breyer (1970), Abramowicz (2011), Merges (2011).

<sup>23</sup> Cf. Landes and Posner (2003, pp. 16–21).

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